

INTELLECTUAL PROPERTY RIGHTS AND ASSIGNMENT AGREEMENT

This Intellectual Property Assignment Agreement (“Agreement”) is entered into by and between Capin Crouse, LLP, an Indiana limited liability partnership (the “Company”) and Moses Kaumatule (the “Employee”) (the Company and the Employee are collectively referred to herein as the “Parties,” each a “Party”) as of December 6, 2024 (the “Effective Date”).

WHEREAS, Employee was hired and employed by the Company to develop, conceive or create certain Work Product (as defined herein) for the benefit of the Company and that Employee, within the scope of his/her employment with Company, has developed and will continue to develop hereafter such Work Product;

WHEREAS, the Parties have intended and do intend that all Work Product developed by Employee shall be the property of the Company and that the Company shall exclusively own all right, title and interest in and to such Work Product, including all Intellectual Property Rights (as defined herein) thereto;

NOW, THEREFORE, in consideration of the promises contained in this Agreement, as well as Employee’s continued employment by the Company pursuant to the terms and conditions set forth herein, the Parties hereby agree as follows:

1. Definitions. The following terms have the meanings specified.

(a) “**Intellectual Property Rights**” means all rights in and to US and foreign (i) patents, patent disclosures, and inventions (whether patentable or not), (ii) trademarks, service marks, trade dress, trade names, logos, corporate names, and domain names, and other similar designations of source or origin, together with the goodwill symbolized by any of the foregoing, (iii) copyrights and works of authorship (whether copyrightable or not), including computer programs, software and computer code (whether in source or object code form), software applications, software documentation, libraries, interfaces, algorithms, assemblers, compilers, development tools, graphics, and rights in data and databases, (iv) trade secrets, know-how, and other confidential information, and (v) all other intellectual property rights, in each case whether registered or unregistered, and including all registrations and applications for, and renewals or extensions of, such rights, and all similar or equivalent rights or forms of protection in any part of the world.

(b) “**Work Product**” means all writings, technology, inventions, discoveries, processes, techniques, methods, ideas, concepts, research, proposals, materials, and all other work product of any nature whatsoever, that are created, prepared, produced, authored, edited, amended, conceived, or reduced to practice by the Employee solely or jointly with others during the period of their employment by the Company and relate in any way to the business or contemplated business, products, activities, research, or development of the Company or result from any work performed by the Employee for the Company (in each case, regardless of when or where the work product is prepared or whose equipment or other resources is used in preparing the same), all rights and claims related

to the foregoing, and all printed, physical, and electronic copies and other tangible embodiments thereof.

2. Intellectual Property Rights.

(a) Work Product. The Employee acknowledges and agrees that all right, title, and interest in and to all Work Product as well as any and all Intellectual Property Rights therein shall be the sole and exclusive property of the Company. The Company shall have the unrestricted right (but not any obligation), in its sole and absolute discretion, to (i) use, commercialize, or otherwise exploit any Work Product or (ii) file an application for patent, copyright registration, or registration of any other Intellectual Property Rights, and prosecute or abandon such application prior to issuance or registration. No royalty or other consideration shall be due or owing to the Employee now or in the future as a result of such activities.

(b) Work Made for Hire; Assignment. The Employee acknowledges that, by reason of being employed by the Company at the relevant times, to the extent permitted by law, all Work Product consisting of copyrightable subject matter is “work made for hire” as defined in the Copyright Act of 1976 (17 U.S.C. § 101), and such copyrights are therefore owned by the Company. To the extent that the foregoing does not apply, Employee hereby irrevocably assigns to the Company, and its successors and assigns, for no additional consideration, the Employee’s entire right, title, and interest in and to all Work Product and Intellectual Property Rights therein, including, without limitation, the right to sue, counterclaim, and recover for all past, present, and future infringement, misappropriation, or dilution thereof, and all rights corresponding thereto throughout the world.

(c) Limitations on Assignment. Employee understands and acknowledges that Work Product does not include, and any provision in this Agreement requiring the Employee to assign (or otherwise providing for ownership by the Company of) rights to an invention does not apply to, any invention that the Employee develops entirely on his or her own time without using the Company’s equipment, supplies, facilities, or trade secret information, except for those inventions that either (i) relate to the Company’s business, or actual or demonstrably anticipated research or development of the Company or (ii) result from any work performed by the Employee for the Company.

(d) Further Assurances; Power of Attorney. During and after employment, the Employee agrees to reasonably cooperate with the Company to (i) apply for, obtain, perfect, and transfer to the Company the Work Product as well as any and all Intellectual Property Rights in the Work Product in any jurisdiction throughout the world, and (ii) maintain, protect, and enforce the same, including without limitation giving testimony, and executing and delivering to the Company any and all applications, oaths, declarations, affidavits, waivers, assignments, and other documents and instruments as may be requested by the Company. The Employee hereby irrevocably grants the Company power of attorney to execute and deliver any such documents on the Employee's behalf in the Employee's

name and to do all other lawfully permitted acts to transfer legal ownership of the Work Product to the Company and further the transfer, prosecution, issuance, and maintenance of all Intellectual Property Rights therein, to the full extent permitted by law, if the Employee does not promptly cooperate with the Company's request (without limiting the rights the Company shall have in such circumstances by operation of law). This power of attorney is coupled with an interest and shall not be affected by the Employee's subsequent incapacity.

(e) Moral Rights. To the extent any copyrights are assigned under this Section, the Employee hereby irrevocably waives in favor of the Company, to the extent permitted by applicable law, any and all claims the Employee may now or hereafter have in any jurisdiction to all rights of paternity or attribution, integrity, disclosure, and withdrawal and any other rights that may be known as "moral rights" in relation to all works of authorship to which the assigned copyrights apply. To the extent such waiver of the foregoing rights is not permitted under applicable law, Employee has irrevocably authorized, and hereby irrevocably authorizes, Company to publish, revise, alter, distort, transform, combine, manipulate, separate and otherwise commercialize all Work Product, whether in their entireties or portions thereof, in Company's sole discretion and without restriction, and without credit, attribution or further consideration to Employee.

(f) Company's Rights. Employee acknowledges and affirms that the rights assigned to the Company comprise all of Employee's rights in and to the Work Product of every kind, nature and/or description, including without limitation: (a) the right to make, use, reuse, license, sublicense, exploit, sell, offer to sell, import, export, publish, republish, reproduce, exhibit, display, print, reprint, distribute, transmit, broadcast, modify, edit, create derivative works based upon and otherwise use and/or dispose of the Work Product; and, (b) all publication rights in the Work Product in any form and/or medium, including without limitation print, electronic and/or digital form.

3. Successors and Assigns. The Company may assign this Agreement to any subsidiary or corporate affiliate, or to any successor or assign (whether direct or indirect, by purchase, merger, consolidation, or otherwise) to all or substantially all of the business or assets of the Company. The Employee may not assign this Agreement or any part hereof. Any purported assignment by the Employee shall be null and void from the initial date of purported assignment. This Agreement shall be binding upon the Employee's heirs, executors, administrators, and other legal representatives.

4. Governing Law; Jurisdiction and Venue. This Agreement, for all purposes, shall be construed in accordance with the laws of Delaware without regard to conflicts-of-law principles. Any action or proceeding by either Party to enforce this Agreement shall be brought in any state or federal court located in the state of Delaware.

5. Entire Agreement. Unless specifically provided in this Agreement, this Agreement contains all the understandings and representations between the Employee and the Company pertaining to the subject matter hereof and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter.

6. Modification. No provision of this Agreement may be amended or modified unless the amendment or modification is agreed to in writing and signed by the Parties.

7. Severability. The invalidity or unenforceability of any provision of this Agreement shall not affect the validity or enforceability of any other provision of this Agreement, and each provision of this Agreement shall be severable and enforceable to the extent permitted by law.

8. Notices. Any notices required or permitted under this Agreement will be given to the Company at its headquarters location at the time notice is given, labeled "Attention Chief Executive Officer," and to the Employee at their address as listed on Company payroll, or at such other address as the Company or the Employee may designate by written notice to the other. Notice will be effective on receipt or refusal of delivery.

9. Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which taken together shall constitute one and the same instrument. Delivery of an executed counterpart's signature page of this Agreement by email in portable document format (.pdf), or by any other electronic means intended to preserve the original graphic and pictorial appearance of a document has the same effect as delivery of an executed original of this Agreement.

10. Advice of Counsel. EMPLOYEE ACKNOWLEDGES THAT, IN EXECUTING THIS AGREEMENT, EMPLOYEE HAS HAD THE OPPORTUNITY TO SEEK THE ADVICE OF INDEPENDENT LEGAL COUNSEL AND HAS READ AND UNDERSTOOD ALL OF THE TERMS AND PROVISIONS OF THIS AGREEMENT. THE EMPLOYEE ACKNOWLEDGES THAT NO PROMISES OR REPRESENTATIONS HAVE BEEN MADE TO INDUCE THE EMPLOYEE TO SIGN THIS AGREEMENT.

[Signatures on Following Page]

IN WITNESS WHEREOF, each party has caused this Agreement to be executed and delivered by duly authorized persons as of the date above written.

Employee:

Company:

CAPIN CROUSE, LLP

By: _____

By: _____

Print Name: _____

Its: _____

Date:

Date: